

complaint

Mr and Mrs R have complained about the decision of U K Insurance Limited ("UKI") to decline their claim under their home insurance policy for storm damage and about the way their claim was handled.

background

Mr and Mrs R made a claim for storm damage after their garden wall collapsed. It was a brick wall with a small trellis on top. UKI sent a surveyor to inspect the wall. He thought the wall showed signs of wear and tear.

Mr and Mrs R didn't hear anything from UKI or the loss adjuster for over two months until the loss adjuster advised them in writing that their claim was being declined due to wear and tear. Mrs R wasn't happy with this and tried to contact UKI by telephone without success. She also wrote to them twice and after almost two months received an apology for the lack of contact although UKI still didn't agree to settle the claim. UKI offered Mr and Mrs R £40 for the failure to keep them informed and a further £15 for telephone costs. Mr and Mrs R didn't accept this offer and complained to this service.

Our adjudicator thought UKI had acted unreasonably in declining Mr and Mrs R's claim for storm damage. He thought there was insufficient evidence of wear and tear being the main cause of the damage and it was more likely that if it were not for the storm, the wall would still be intact. In his view UKI should reconsider the claim, refund Mr and Mrs R's telephone and postage costs and pay a further £75 compensation for distress and inconvenience.

As UKI didn't agree, the matter has been referred to me.

my findings

I have considered all the available evidence and arguments to decide what is fair and reasonable in the circumstances of this complaint.

When considering a storm claim, I take into consideration the following questions:

- were there storm conditions on or around the date the problem occurred?
- is the nature of the damage claimed for consistent with storm damage?
- were the prevailing storm conditions the dominant or effective cause of the problem?

If the answer to any of these is "no", the complaint is likely to fail.

In this case it is no longer disputed that there was a storm on the day in question. The critical issues are whether the damage is consistent with storm damage and whether the storm was the main cause of the wall collapsing.

is the nature of the damage claimed for consistent with the storm damage?

I can see from photographs that the wall appears to have fallen over in one piece and broken up on impact with the ground. In my opinion this is consistent with it being blown over by storm force wind.

were the prevailing storm conditions the dominant or effective cause of the problem?

In deciding this issue I generally rely on the expert evidence presented.

UKI's loss adjuster didn't think the storm was the main cause of the damage because his inspection of the wall revealed signs of wear and tear. He said there was mould growth to the joints in several areas and the wall was situated near vegetation that would have reduced its structural strength. He also noted that there were no signs of similar damage to the surrounding area with several fences being unaffected although they were facing in the same direction.

I am placing less reliance than usual on the loss adjuster's report because of mistakes in his letter to Mr and Mrs R - he referred to an incorrect insurer and said that their policy excluded damage caused by wear and tear. Although home insurance policies often exclude damage caused by wear and tear, Mr and Mrs R's policy didn't have that exclusion but there is a condition that they must keep their building (which includes the garden wall) in a good state of repair.

From looking at photographs of the wall before and after its collapse, I am not persuaded it was in a poor condition. I could see some green marks or weathering on the mortar and a limited amount of moss but nothing significant enough to make it fall down. There was a small amount of vegetation lying across the bottom of the wall but no sign that it had grown into the wall in a way which would affect its structural integrity.

The fact that a neighbour's fence withstood the storm may simply be because it was shielded from the worst of the storm by Mr and Mrs R's wall but in any event there is often very little reason why one part of a property suffers damage and another does not in a storm.

Overall I am satisfied that it is most likely that the storm conditions caused the wall to collapse as opposed to it not being in a good state of repair. I think it would probably have remained in place for some time if it hadn't been for the storm. Therefore I think UKI should settle Mr and Mrs R's claim.

Mr and Mrs R weren't in a position to rebuild the wall and so they erected a fence between them and their neighbours. As this only happened because their claim had been declined, I think UKI ought to reimburse them for the cost of this.

Having considered the above points, I think it is right that Mr and Mrs R should be compensated for the trouble and inconvenience they have experienced as a result of UKI's actions. I think that an award of £100 would be in line with this service's approach in relation to compensation for trouble and upset. I also agree that they should be compensated for the telephone calls and postage costs they incurred in chasing UKI for a response.

my final decision

I uphold this complaint. I require U K Insurance Limited to:

- settle Mr and Mrs R's claim for storm damage;
- if settlement is by way of a cash payment to Mr and Mrs R, pay 8% simple interest on top of the settlement (calculated from the date of the claim);
- reimburse Mr and Mrs R for the cost of replacement fencing together with 8% simple interest (calculated from the date of payment);

- pay Mr and Mrs R the sum of £30.51 by way of reimbursement for telephone calls and postage; and
- pay compensation of £100 to Mr and Mrs R.

Under the rules of the Financial Ombudsman Service, I am required to ask Mr and Mrs R to accept or reject my decision before 28 August 2015.

Elizabeth Grant
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